



2026:AHC:177101-DB

HIGH COURT OF JUDICATURE AT ALLAHABAD

WRIT - C No. - 21747 of 2026

Prema Devi

.....Petitioner(s)

Versus

Purvanchal Vidhut Vitran Nigam And Another

.....Respondent(s)

Counsel for Petitioner(s)	:	Arun Mishra, Vijay Pratap Singh
Counsel for Respondent(s)	:	Narendra Kumar Tiwari

Court No. - 29

**HON'BLE ARINDAM SINHA, J.
HON'BLE SATYA VEER SINGH, J.**

1. The writ petition was moved on 7th August, 2026. Paragraphs-1 and 2 from order made that day are reproduced below.

*"1. Mr. Arun Mishra, learned advocate appears on behalf of petitioner.
Prayer (i) in the writ petition is reproduced below.*

"i) Issue a writ of Mandamus commanding respondent No. 2 to generate one bill from 31.03.2010 (when the bill was finally paid) to date on the basis of reading of all meters removed and current reading in the current meter, taking the connection as Domestic (in place of commercial) and without surcharge giving benefit of Clause 6.5 (b) (i) of the UP Electricity Supply Code, 2005."

He draws attention to communication dated 29th March, 2025 to submit, the supply company admitted that his client's meter was wrongly classified. He submits, domestic consumption was converted to commercial and there was excess billing. Hence, prayer for generating one bill and reliance on the provision in the Code.

2. Mr. R.K. Mishra, learned advocate, holding the brief, appears for respondents (the supply company) and submits, he has instructions to explain the alleged anomaly. The supply company will file counter to be accepted on adjourned date, upon advance copy served."

2. Mr. R.K. Mishra files counter of date with copy to Mr. Arun Mishra. On perusal thereof Mr. Arun Mishra relies on paragraph-6 in it. Said paragraph is reproduced below.

*"6. That the contents of paragraph nos. 4 and 5 of writ petition are not admitted hence vehemently denied, in reply thereto, **it is submitted that the electricity connection of the petitioner was under domestic category load of 1 KW while it was connected under category of commercial connection till 31.12.2019.** Since 01.01.2020, the category of the aforesaid connection was changed from commercial to domestic. The new electricity meter no. 5614542 was installed replacing old meter no. 598615 on 03.10.2015."*

(Emphasis supplied)

We see clear admission by the supply company that petitioner, though under domestic category load of 1 kw, had her connection categorized under commercial till 31st December, 2019.

3. There will be order in terms of prayer (i) reproduced above. Compliance is to be within three weeks from communication of certified copy of this order to respondent no. 2 (the Executive Engineer).

4. The writ petition is disposed of.

(Arindam Sinha,J.)

(Satya Veer Singh,J.)

August 21, 2026
Shiraz